

HOUSE No. 2466

The Commonwealth of Massachusetts

PRESENTED BY:

Sally P. Kerans

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act supporting survivors through financial assistance.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Sally P. Kerans</i>	<i>13th Essex</i>	<i>1/17/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>3/3/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>3/11/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>4/7/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>4/13/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>4/17/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>7/14/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>7/31/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>9/3/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>9/24/2025</i>

HOUSE No. 2466

By Representative Kerans of Danvers, a petition (accompanied by bill, House, No. 2466) of Sally P. Kerans, Jason M. Lewis and Samantha Montañó that the Department of Public Health be authorized to establish a program to support survivors through financial assistance. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act supporting survivors through financial assistance.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 111 of the General Laws, as appearing in the 2022 official edition,
2 is hereby amended by inserting after Section 244 the following section-:

3 Section 245 (A). As used in this act:

4 a. “Community-based organization” means a nonprofit organization, or an organization
5 fiscally sponsored by a nonprofit organization, that provides direct services to survivors of
6 violence. Community-based organizations include but are not limited to: social and human
7 service organizations, legal aid organizations, grassroots organizations, faith-based
8 organizations, culturally specific organizations, community development organizations, health
9 and mental health support organizations, housing assistance organizations

10 b. “Family member” means any of the following:

11 i. A person related to another by blood, adoption, or marriage.

- ii. A household member or former household member of another.
- iii. A person who is not related by blood, adoption, or marriage to another but who otherwise has a significant emotional relationship with another.
- c. “Grant program” means the Flexible Assistance for Survivors of Violence (FAS) pilot grant program established by this chapter.
- d. “Flexible cash assistance” shall mean payments directly to recipients, that include, but are not limited to:
 - i. Prepaid cards
 - ii. Gift cards
 - iii. Checks
 - iv. Money deposited in a bank account
 - v. Cash
- e. “Department” means the Department of Public Health
- f. “Survivor of violence” means any of the following:
 - i. A person who has been a victim of stalking, domestic violence, sexual violence, community violence, homicide, kidnapping, child abuse, human trafficking, or elder abuse.
 - ii. A person who has been physically injured by an act of force by another person.
 - iii. A person who has been threatened with physical injury or reasonably believes they were threatened with physical injury by another person.

iv. A person who has suffered physical injury, as a result of a law enforcement officer's inappropriate use of force.

v. A person who suffers a threat of physical injury or reasonably believes they were threatened with physical injury as a result of a law enforcement officer's inappropriate use of force.

vi. A person who has witnessed an act described under paragraph (i), (ii), (iii), (iv), or (v) and has experienced an emotional injury or feels threatened as a result.

vii. A family member of a person who is the victim of an act described under paragraph (i), (ii), (iii), (iv), or (v), including, but not limited to, a family member or person of significant emotional relationship of a person who is killed by the act.

(B). The Flexible Assistance for Survivors (FAS) pilot grant program is hereby established, to be administered by the department, with the goal of improving safety, healing, and financial stability for survivors, and the loved ones of those violently injured or killed.

(C). FAS grants shall be made to qualifying community-based organizations pursuant to this section for the purpose of establishing assistance funds to distribute in direct cash assistance to survivors.

(D). The department shall establish an advisory committee that includes, without limitation, persons who have been impacted by violence, formerly incarcerated persons, and persons with direct experience in implementing supportive services for marginalized survivors. Racial, gender, and ethnic diversity, and representation of communities and identities shall be

considered for all appointments. Advisory board members are appointed for two year terms and cannot serve consecutive terms. The committee shall consist of six members, as follows:

a. Three representatives from community-based organizations, or with expertise providing direct services and recovery assistance such as housing, job placement, counseling, legal services, or economic support to vulnerable survivors.

i. These appointments shall be made by the Department of Public Health Bureau of Community Health and Prevention

b. Three community providers or advocates with expertise in community-based or statewide violence reduction or prevention programs.

i. These appointments shall be made by the Department of Public Health Bureau of Community Health and Prevention

(E). A person's criminal history shall not disqualify them from being appointed to the advisory board.

(F). The advisory committee shall establish rules for implementing this section and shall make grants under this chapter on a competitive basis to community-based organizations.

Community-based organizations shall apply on a form prescribed by the committee, which shall include, but not be limited to, all of the following:

a. A description of the organization's history serving one or more of the groups described in subdivision (f).

b. A description of how the community or communities the organization serves are impacted by violence and incarceration.

c. The estimated number of survivors of violence the organization or program currently serves.

d. The estimated number of survivors of violence to whom the organization or program anticipates it will distribute grant funds.

e. How the organization plans to distribute flexible cash assistance funds to survivors to meet immediate financial needs quickly.

f. How the organization plans to minimize the burden on survivors to provide documentation or submit paperwork.

(G). The advisory committee shall do all of the following:

a. Strive to minimize the paperwork burden on grant applicants and grantees.

b. Strive to develop an application, awards, and reporting process that is accessible to community-based organizations with smaller budgets or without past experience receiving a state grant award.

c. Develop a plan to publicize the grant program in advance of an application deadline.

d. Create guidelines around effective and inclusive evidence-based direct cash distribution practices for grantees

e. Provide technical assistance to applicants and grantees.

f. Work with the department to develop tools to support applicants applying for an award under this chapter, including, but not limited to, templates and sample applications, which shall be posted prominently on the office's internet website.

g. Prior to an application deadline, work with the department to publicize and host at least two webinars that are open to the public detailing how to apply for a grant under this chapter.

(H). A community-based organization shall be eligible to apply for a grant under this chapter if the organization has a history of serving survivors of violence and the majority of people the organization, or a project within the organization that will administer the grant, serves are survivors of violence.

(I). When considering grant applications, the advisory committee shall give preference to organizations that are located in, serve, and employ members of communities that experience disproportionately high rates of gun violence and imprisonment.

(J). When considering grant applications, the advisory committee shall give preference to community-based organizations that have a history of providing services to vulnerable survivors, including, but not limited to, the following:

a. Survivors of color.

b. Elderly survivors.

c. Survivors with disabilities.

d. Survivors who are transgender or gender nonconforming.

e. Survivors from communities that have been disproportionately criminalized/policed.

f. Survivors who are formerly incarcerated or who have past arrests or convictions.

g. Survivors who are undocumented/at risk of becoming undocumented.

111 h. Survivors who are unhoused.

112 i. Survivors of firearm injuries.

113 j. Survivors who have lost a family member to homicide.

114 k. Survivors facing mental health crises.

115 l. Low-income survivors.

116 m. Survivors challenged by substance misuse.

117 (K). An organization receiving a grant under this chapter may use the funds as follows:

118 a. Unrestricted cash assistance to survivors of violence to meet survivors' financial needs
119 or to cover survivors' expenses, distributed at the discretion of the organization in amounts
120 determined by the organization based on the needs of survivors and in a way that minimizes or
121 eliminates the burden on survivors to provide external documentation of their need or expenses.

122 b. Up to 10 percent for the organization's expenses in administering the grant.

123 (L). A community-based organization receiving a grant under this chapter shall establish
124 policies and procedures for distributing funds to survivors whom the organization serves that
125 comply with all the following:

126 a. Allow survivors to attest to their experience of violence without obtaining external
127 documentation of a violent victimization.

128 b. Promote distribution of funds to survivors in a manner that meets the immediate needs
129 of survivors quickly.

130 c. Do not require survivors to engage in other services or programs as a condition of
131 receiving funds.

132 d. Do not require survivors to provide or maintain burdensome documentation of their
133 need or spending.

134 e. Do not require survivors to report a crime to a law enforcement agency as a condition
135 of receiving cash assistance.

136 f. Do not exclude survivors on the basis of citizenship or immigration status.

137 g. Do not exclude survivors on the basis of an arrest or conviction record, nor on the basis
138 of a survivor's status under correctional supervision.

139 (M). Notwithstanding any other law, cash assistance received under this chapter shall be
140 treated in the same manner as the federal earned income refund for the purpose of determining
141 eligibility to receive benefits under Chapter 106 of the Code of Massachusetts Regulations or
142 amounts of those benefits.

143 (N). Each grantee shall annually report to the department both of the following:

144 a. The aggregate number of survivors who received cash assistance through the grant
145 program.

146 b. The average amount of assistance each survivor received through the grant program.

147 c. High level aggregate data on how the funds are being utilized by programs and
148 survivors.

149 (O). The department may use up to 5 percent of the funds appropriated for the grant
150 program each year for the costs of administering the grant program, including, without
151 limitation, employing personnel, providing technical assistance to grantees or prospective
152 grantees, and issuing a report on the impacts of the grant program.

153 (P). Before July 1, 2028, the department shall post on its internet website a public report
154 on the impact of the grant program, which shall include policy recommendations to provide
155 guidance to the Legislature and Governor in fully implementing and scaling a permanent grant
156 program.